

& *Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1115-1116; Code Civ. Proc. § 484.090, subd. (a).)

Here, Defendants Lasme and Lola Ventures have not opposed the instant motion. However, because the Court has found that Plaintiffs have not met their burden of showing the probable validity of their claim, the Court will be unable to grant the motion as to these defendants.

Ruling

The Court **DENIES** Plaintiffs' applications for right to attach orders and writs of attachment against Defendants without prejudice.

4. 9:00 AM CASE NUMBER: C25-00602
CASE NAME: GLOBAL VENTURE ENTERPRISES LLC, VS. THE HOUSE OF WALTER H. WILLIAMS, LLC,
***HEARING ON MOTION IN RE: WITHDRAW REQUEST FOR ENTRY OF DEFAULT OF DEFENDANT THE**
HOUSE OF WALTER H. WILLIAMS, LLC
FILED BY: GLOBAL VENTURE ENTERPRISES LLC,
TENTATIVE RULING:

Plaintiff global Venture Enterprises LLC filed this action on March 5, 2025. Plaintiff succeeded in serving Defendant The House of Walter H. Williams, LLC on July 2, 2025. On August 18, 2025, Plaintiff requested Entry of Default and the court entered the requested default. On October 3, 2025, Plaintiff filed the instant Motion to Withdraw Request for Entry of Default, with a declaration accompanying noting that Plaintiff had learned additional information since the entry of the default and wished to amend the pleading to add individual parties. Plaintiff is unable to amend new parties in when the sole original Defendant—and therefore the entire operative complaint—is subject to default. Plaintiff served Defendant's agent for service of process with this motion. The Court received no opposition to this request.

Plaintiff cites to Code of Civil Procedure section 473(b) to note that relief from default may be taken as a result of mistake or inadvertance. That section, however, speaks specifically to "reliev[ing] a party or the party's legal representative from a judgment, dismissal, order, or other proceeding *taken against the party* through the party's mistake, inadvertence, surprise, or excusable neglect." The Court could find no guidance on situations like the one at issue here. Plaintiff does properly note that courts are to liberally allow amendment to a complaint. Code Civ. Pro. § 473(a). Given that Plaintiff filed this motion relatively promptly, the stated interest is in amending new parties in, and the Court sees no substantial prejudice in permitting the relief requested, the Motion is **granted**. The default judgment is withdrawn and Plaintiff may file an amended complaint.

5. 9:00 AM CASE NUMBER: C25-00744
CASE NAME: SHELBY SIFERS VS. NBCUNIVERSAL MEDIA, LLC
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE:**
KYLE A. SHAMBERG
FILED BY: SIFERS, SHELBY
TENTATIVE RULING:

Background

On October 7, 2025, Plaintiffs Shelby Sifers et al. filed Notice of Hearing, through Counsel Matthew Ruan, on Verified Application for Admission of Kyle A. Shamberg to the Bar of this Court Pro Hac Vice (“Motion”). The Motion was supported by the Declaration of Kyle Shamberg. The Proof of Service shows that service was accomplished via mail on October 7, 2025, and that the State Bar was notified via the Admissions Applicant Portal.¹ The Court did not receive timely opposition from Defendant NBCUniversal Media.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel Pro Hac Vice to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the application of Kyle Shamberg contains a declaration which declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Shamberg is an attorney licensed to practice in Illinois and New York, and before District Courts for the Northern, Central, and Southern Districts of Illinois and the Courts of Appeals for Second and Seventh Circuits. He is employed by Carroll Shamberg LLC in Chicago, Illinois. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted Pro Hac Vice.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant’s motion is granted. Kyle Shamberg is admitted to appear as Counsel Pro Hac Vice for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 26, 2026.

6. 9:00 AM CASE NUMBER: C25-01550
CASE NAME: EVERETT WATROUS III VS. EVERETT WATROUS IV
***HEARING ON MOTION IN RE: DISQUALIFY COUNSEL**
FILED BY: WATROUS IV, EVERETT D.
TENTATIVE RULING:

Defendants and Cross-Complainants Everett Watrous IV, April Watrous, and CMM Systems, Inc bring this Motion to Disqualify counsel for Plaintiff and Cross-Defendant Everett Watrous IV. Plaintiff filed a timely opposition. Both parties have submitted declarations in support of their filings.

¹ Although California Rule of Court 9.40 specifies that service must be made upon the State Bar at its San Francisco office, the State Bar website directs notice to be given through the portal.